

VCU328353 Gustafson, Jason A. vs. American Honda Motor Co, Inc.

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-09-15

Motion: Plaintiffs' Motion to Compel Further Responses to Requests for Production of Documents

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Re: Gustafson, Jason A. vs. American Honda Motor Co, Inc.

Case No.: VCU328353

Date: September 15, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Plaintiffs' Motion to Compel Further Responses to Requests for Production of Documents

Tentative Ruling: To grant the motion in part and order a further response to Nos. 1,3, 4, 7, 10, and 31 no later than thirty (30) days from the date of this hearing; to deny the motion in part as to Nos. 8, 16, 23-28, and 30; to deny the request for sanctions.

Facts

In this Song Beverly Matter involving the lease of a 2024 Honda Prologue, the complaint alleges "electrical, steering, structural, transmission, and suspension system defects" but notes presentations for rear-view camera malfunctioning, noise emitted while turning, braking assistance system issues, seat issues and issues with the key fob. (Complaint ¶¶11-15.)

On or about January 16, 2026, Plaintiffs propounded Request for Production of Documents, Set One.

On or about April 3, 2026, Defendant responded to Plaintiffs' written discovery requests asserting objections to each response, and, in some instances stating "without waiving these objections, the requested production will be allowed in whole and all documents in the demanded category that are in the possession, custody, or control of AHM will be included in the production, including the non-confidential portions of the ACS File. AHM will also produce its CRRS Reports and the confidential portions of the ACS File, which contain information that is confidential, commercially sensitive, and/or proprietary, pursuant to the entry of an appropriate protective order."

On or about May 12, 2026, Plaintiff sent a meet and confer letter. On May 22, 2026, Defendant responded stating "AHM served its non-confidential documents on May 8, 2026, which includes 475 pages of documents, along with the proposed

stipulated protective order. Further, AHM will be sending the confidential production of documents once a conformed copy of the stipulated protective order is received.”

Additionally, Defendant and Plaintiff, thereafter, extended the time to file this motion to compel further and continued to correspond as to document production.

On July 2, 2026, Plaintiff filed this motion and filed an amended motion on July 9, 2026.

Plaintiff states that the objections are boilerplate, the responses are not Code-complaint and that, in Plaintiff's counsel declaration dated July 6, 2026 “On or about April 3, 2026, Defendant responded to Plaintiffs' written discovery requests asserting boilerplate objections that are not Code-compliant to every single of Plaintiffs' requests. Moreover, at this time, Defendant failed to produce many of the responsive documents requested.”

As such, Plaintiff seeks further responses to Nos. 1, 3, 4, 7, 8, 10, 16, 23-28, and 30-31.

No opposition has been filed.

Authority and Analysis

Code of Civil Procedure section 2031.210 requires, in response to a request for production, the following:

“(a) The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following:

(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities.

(2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item.

(3) An objection to the particular demand for inspection, copying, testing, or sampling.”

Code of Civil Procedure section 2031.220 provides “A statement that the party to whom a demand for inspection, copying, testing, or sampling has been directed will comply with the particular demand shall state that the production, inspection, copying, testing, or sampling, and related activity demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.”

Code of Civil Procedure section 2031.230 provides “A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.”

Finally, Code of Civil Procedure section 2031.310(a) permits a party to demand a further response where:

“(1) A statement of compliance with the demand is incomplete.

(2) A representation of inability to comply is inadequate, incomplete, or evasive.

(3) An objection in the response is without merit or too general.”

Under subsection (b), the motion must “set forth specific facts showing good cause justifying the discovery sought by the demand.” In *Digital Music News LLC v Superior Court* (2014) 226 Cal.App.4th 216 at 224, the court defined “good cause” as a showing that there “a disputed fact that is of consequence in the action and the discovery sought will tend in reason to prove or disprove that fact or lead to other evidence that will tend to prove or disprove the fact.” If the moving party has shown good cause for the requests for production, the burden is on the objecting party to justify the objections. (*Kirkland v. Sup.Ct* (2002) 95 Cal. App.4th 92, 98.)

Nos. 1, 3, 4, 7, 8, 10

Plaintiff characterizes these requests as involving Plaintiff’s own vehicle.

The Court notes that Defendant either indicates production will occur, or that production will occur upon execution of a protective order, except as to No. 8.

The response to No. 8 states “Pursuant to a diligent search and reasonable inquiry, AHM has no documents responsive to this request specifically issued for the SUBJECT VEHICLE, and no responsive documents exist or have ever existed.”

Further, Defendant’s meet and confer correspondence appears to indicate production documents occurred, at the latest, June 17, 2026 wherein links for confidential and non-confidential documents were provided. (Exhibit 7.)

The Court notes the general statements “Moreover, at this time, Defendant failed to produce many of the responsive documents requested” and “Defendant has not yet provided adequate discovery responses or produced all documents responsive to Plaintiffs’ discovery requests” by Plaintiff’s counsel lack any reference to this production and whether production has occurred.

To the extent production has not occurred as to these categories, the Court orders further responses, except as to No. 8, no later than thirty (30) days from the date of this hearing

No. 16

Plaintiff characterizes these requests as involving Defendant’s policies and procedures for handling Song-Beverly Consumer Warranty Act Cases.

No. 16 states:

"All DOCUMENTS which evidence, describe, refer, or relate to YOUR Call Center Policies and Procedures for escalating customer complaints relating to any defects present in their vehicle."

Defendant objected to the request, but indicated that various confidential documents would be provided pursuant to a protective order.

The Court, however, finds this category overbroad on its face in that it is not limited to policies related to the defects presented by Plaintiffs' vehicle. As such, the Court will not order further production here.

Nos. 23-28

Plaintiff characterizes these requests as involving Defendant's warranty policy and the procedure used for handling warranty issues.

Like the above, the Court finds these requests overbroad, as they seek documents for handling any and all warranty issues, as opposed to issues presented to Defendant with respect to Plaintiffs' vehicle.

The Court will not order further production here.

Nos. 30-31

Plaintiff characterizes these requests as seeking information regarding similar customer complaints in vehicles of the same year, make, and model as the Subject Vehicle.

Unlike the above, these requests are tailored to the issues present in Plaintiffs' vehicle. The Court finds that documents relating to vehicles of the same make, model, and year, that exhibited "substantially similar" defects are within the scope of discovery to the action and are not vague, ambiguous, or overbroad, and do not request documents from other entities.

As such, the Court will order a further response to No. 30.

No. 31 seeks documents relate to "Field Service Act" issued with respect to issues alleged to be suffered by Plaintiffs' Vehicle. Defendant's response states "AHM is unable to comply with this request. AHM has made a diligent search and reasonable inquiry and has no "Field Service Actions," and no responsive documents have ever existed."

The separate statement uses the term "field reports data" and references documents produced to the NHTSA and defined under 49 C.F.R. §§ 579.21, et seq. Plaintiff notes "Notably, as part of Defendant's requirement to comply with the Code of Federal Regulation, 49 C.F.R. §§ 579.21 et seq., 579.22 et seq requires manufacturers/distributors, like AHM to quarterly submit to the National Highway Safety Administration the documents which Plaintiffs is seeking."

As such, the Court will order a further response to No. 31.

Sanctions

Based on mixed results, the Court declines to award sanctions. (Mattco Valley Forge v. Arthur Young & Co. (1990) 223 Cal.App.3d 1429, 1437.)

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.